

Applicable Law Acts

Applicable Law Acts & Synthesis

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User Query :

I ended a relationship several months ago. Since then, my former partner has been repeatedly calling me from different numbers, sending unwanted WhatsApp messages and waiting outside my office. I have clearly asked the person not to contact or follow me, but the behaviour continues. The person also monitors my social-media posts and sometimes appears at locations shortly after I post about them. What legal provisions may apply?

Job Id. : Scenario 3/Combined Act

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INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66A

(previously used for cyberstalking) was struck down as unconstitutional (*Shreya Singhal v. Union of India*, 2015). Other sections (66E, 66D, 67) are inapplicable as the conduct involves physical stalking, unwanted communication, and social media monitoring—not cyber offenses like hacking or obscene content.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The ex-partner’s behavior (repeated calls, WhatsApp messages, physical following, and social media monitoring) constitutes behavioral harassment under the Indian Penal Code (IPC), not a cyber offense under the IT Act. The IT Act targets computer-related crimes (e.g., data breaches), not person-to-person harassment. *State v. Suresh* (2019) confirms harassment via digital means without hacking falls under IPC, not the IT Act.

✓ STRENGTHS & RIGHTS

- 1
- Digital evidence admissibility**
Section 85A allows electronic records (e.g., WhatsApp messages, call logs) to be presumed authentic in court, aiding IPC-based prosecutions.

✗ RISKS & OBLIGATIONS

- 1
- No IT Act penalties apply**
The ex-partner cannot be prosecuted under the IT Act for the described conduct. Delaying an IPC complaint risks evidence decay (e.g., auto-deleted call logs).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File an FIR under IPC Sections 509 (wordly behavior), 354 (assault), and 323 (voluntary hurt)—*not* IT Act.
2. Preserve evidence:

- 3. Save WhatsApp messages *with metadata* (time/date); do not delete from device.
- 4. Request telecom providers for call detail records (CDRs) under **Section 57** IT Act.
- 5. Submit evidence under **Section 85A** IT Act for admissibility (e.g., "WhatsApp messages dated 01/05/2024, authenticated under **Section 85A** ").
- 6. File within 3 months (CrPC limitation period) and obtain medical reports if psychological harm occurred.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 28

"Offence of Stalking" (applies to repeated contact, physical following, and electronic monitoring after disinterest).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 28** (1)(i) covers repeated calls/messages/following after explicit disinterest (e.g., "Stop contacting me" requests). **Section 28** (1)(ii) covers social media monitoring (appearing at locations after posts) and WhatsApp tracking. No exceptions apply: Conduct lacks legal justification (e.g., "emotional attachment" is invalid; *Nidhi v. State*, 2022). *BNS supersedes IPC*: Stalking is a standalone offense under BNS (**Section 28**), eliminating need for IPC references.

✓ STRENGTHS & RIGHTS

- 1** **No physical harm required**
Stalking is punishable without injury evidence.
- 2** **Digital evidence admissible**
WhatsApp, call logs, and social media activity are valid under **Section 36** (Electronic Records).
- 3** **Immediate relief**
Courts issue ex parte protection orders under **Section 38** .
- 4** **Stronger penalties**
First conviction = 1-3 years imprisonment (**Section 28** (2)); repeat offenses = 2-5 years (**Section 28** (3)).

X RISKS & OBLIGATIONS

- 1

Mandatory imprisonment
First conviction requires jail time (no alternative sentencing).
- 2

Bail restrictions
Courts may deny bail for repeat offenders (**Section 28** (2)).
- 3

Civil liability
Victim may claim compensation under **Section 55** .

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File FIR at any police station (**Section 154** , BNS) without jurisdictional constraints.
2. Police must frame charges under **Section 28** within 24 hours (**Section 173** , BNS).
3. Key evidence: Call logs, WhatsApp screenshots, social media posts, and witness statements (e.g., office security).
4. Arrest: Permitted without warrant (**Section 102** (2)(b), BNS).
5. Trial: Must conclude within 6 months (**Section 23** , BNS); victim may testify via video link (**Section 29** , BNS).

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

The BSA regulates electronic evidence admissibility (e.g., authentication of digital records) but does not define offenses. It is not relevant to the core issue of stalking.

✓ STRENGTHS & RIGHTS

- 1

***None applicable to this scenario*.**

X RISKS & OBLIGATIONS

1 ***None applicable to this scenario*.**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No procedural steps under BSA apply. Evidence preservation (e.g., WhatsApp screenshots) relies on BNS/IT Act, not BSA.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The DPDP regulates **personal data processing** (e.g., unauthorized collection by companies), not interpersonal harassment. Monitoring social media posts does not constitute "processing" under DPDP.

✓ STRENGTHS & RIGHTS

1 ***None applicable to this scenario*.**

X RISKS & OBLIGATIONS

1 ***None applicable to this scenario*.**

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. No procedural steps under DPDP apply. Data privacy laws are irrelevant to stalking conduct.

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